

Petitioner's Instructions for Expungement
Tilmaamaha Daboolidda ee Codsadaha
(Sealing) of Criminal Records
(Daboolidda) Diiwaanka Dambiga
(Minn. Stat. § 609A.01 - .03)
(Minn. Stat. § 609A.01 - .03)

participant/case info review zone

Please read all instructions before filling out paperwork. You will need to make additional copies if you are seeking to expunge more than one file.

Fadlan akhri dhamaan tilmaamaha ka hor inta aadan soo gudbinin warqadaha. Waxaad u baahan tahay in aad samaysid koobiyo dheeraad ah haddii aad rabtid in aad iska dabooshid in ka badan hal fayl.

- **A Motion to Expunge is a complicated procedure.**
Codsiga Daboolidda waa hab adag.
- **If you have any questions or are in need of more assistance, you should contact an attorney.**
Haddii aad qabtid su'aalo ama aad u baahan tahay kaalmo dheeraad ah, waa in aad la xariirtid qareen.
- **The court administrator's office cannot give you legal advice.**
Xafiiska maamulaha maxkamadda kuma siin karo waanada sharciga.

EXPUNGEMENT OR SEALING OF A RECORD – WHAT IT MEANS
DABOOLIDDA AMA DABOOLIDDA DIIWAANKA - MACNAHA KU JIRA

Minn. Stat. § 609A states that the expungement of criminal records is limited to a court order sealing records and prohibiting disclosure of their existence or their opening except under court order or statutory authority. Nothing in the law authorizes destruction of records or their return to you. A judge of the District Court must decide this petition.

Minn. Stat. § 609A wuxuu sheegaa in daboolidda diiwaanka dambiga ku kooban yahay ammarka maxkamadda ee daboolidda diiwaanka iyo mamnuuca kashifaadooda ama in la furo marka laga reebo ammar ka soo baxa maxkamadda ama awoodda sharciga. Ma jiro wax ku jiro sharciga oo fasaxa burburinta diiwaanka ama in lagu soo celiyo adiga. Garsooraha Maxkamadda Gobolka waa in uu go'aan ka gaaro codsigaan.

Once sealed/expunged, a record will not be available to the general public. However, for orders issued before January 1, 2015, Minn. Stat. § 609A.03, subd. 7, states that law enforcement agencies, prosecution or correctional authorities, may seek an order signed by a judge to re-open a sealed case for the purpose of a criminal investigation, prosecution or sentencing. The records may be opened for the purposes of evaluating a prospective employee of a criminal justice agency, without a court order, pursuant to Minn. Stat. § 609A.03, subd. 7, or for certain social services licensing purposes. For orders issued on or after January 1, 2015, Minn. Stat. § 609A.03, subd. 7a, states the limitations of an expungement order and provides authority for certain agencies to access and share expunged records under certain circumstances.

Kaddib marka la daboolo/la suuliyo, dadweynaha guud ma heli doonaan diiwaanka. Hase ahaatee, ammaradii la soo saaray bisha Janaayo 1, 2015 ka hor, Minn. Stat. § 609A.03, subd. 7, wuxuu sheegaa in wakaaladaha hirgelinta sharciga, xeer ilaalinta ama madaxda dhaqan celinta, raadsan karaan ammar uu garsooraha saxiixo si dib loogu furo kiis la daboolay marka ujeedada

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tahay baarista dambi, dambi ku oogid ama ciqaabid. Waxaa dhici karta in la furo diiwaanka si loo qiimeeyo shaqaale ka tirsan wakaaladda caddaaladda dambiga, la'aanta ammar ka soo baxa maxkamadda, sida waafaqsan Minn. Stat. § 609A.03, subd. 7, ama xagga qaar ka mid ah ujeedooyinka shatti bixinta adeegyada bulshada. Ammarada la soo saaray bisha Janaayo 1, 2015 ama kaddib, Minn. Stat. § 609A.03, subd. 7a, wuxuu sheegaa waxyaabaha kooban ee ku jira ammarka daboolidda iyo wuxuu bixiyaa awbodka ay leeyahiin wakaaladaha qaar si ay u helaan una qeybsadaan diiwaanka la daboolay sida hoos timaada xaaladaha qaar.

YOU MAY QUALIFY FOR AN EXPUNGEMENT UNDER MINNESOTA STATUTE § 609A IF:
WAXAA DHICI KARTO IN AAD XAQ U YEELATID DABOOLIDDA WARQADAHA DAMBIGA SIDA HOOS TIMAADO SHARCIGA MINNESOTA STATUTE § 609A HADDII:

- The charges were dismissed, you were found not guilty, or the case did not otherwise result in a guilty plea or finding, or a conviction.
La fasaxo eedeynta, laguuna arkay in aad tahay dambi laawe, ama kiiska ku dambeynin waanwaanta dambiga ama laguuguma helin, ama laguma dhawaaqin xukun.
- You successfully completed the terms of a diversion or stay of adjudication, or were convicted of a crime that qualifies for expungement under Minn. Stat. § 609A.02, subd. 3, and the required amount of time has passed.
Aad ku guuleysatay in aad dhameysid qodobada leexadka (diversion) ama dib u dhigidda xukunka (stay of adjudication), ama waxaa laguugu xakumay dambi oo xaq kuu siiya in la daboolo faylkaada warqadaha dambiga sida hoos timaado Minn. Stat. § 609A.02, subd. 3, iyo in qiyaasta waqtiga loo baahan yahay gudubtay.
- You were charged with a controlled substance offense - the proceedings have been dismissed and discharged.
Laguugu soo eedeyay gafka maadada la kantaroolo - la fasaxay dacwadaha lana joojiyay.
- You were a juvenile prosecuted as an adult.
Aad ahayd qof yar oo dacwadda loogu qaaday sida qof qaan gaaray.
- The Board of Pardons has granted you a pardon extraordinary.
Guddiga Caffinta (Board of Pardons) ku caffisay sida ka baxsan caadiga.

In the situations listed above, the court can order all records of that criminal case kept in Minnesota to be sealed. If there is no court file (the prosecutor did not file formal charges or the grand jury did not file an indictment) and you have not been convicted of any felony or gross misdemeanor in any state for the preceding 10 years, a petition to the court is not necessary to expunge your arrest record. You should contact the arresting agency and/or the BCA (Minn. Stat. § 299C.11, subd. 1(b)).

Xaaladaha kor ku qoran, maxkamadda waxay ammri kartaa in la daboolo dhamaan diiwaanada kiiska dambiga ee lagu haayo Minnesoota. Haddii uusan fayl ka jirin maxkamadda (sida marka xeer ilaaliyaha uusan soo oogin eedo rasmi ah ama guddiga ballaaran soo gudbinin eedo rasmi ah) adigana aan laguugu xakumin dambi culus (felony) ama dambi sare (gross misdemeanor) gobol kasta 10kii sanno ee la soo dhaafay, looma baahna in codsi loo gudbiyo maxkamadda si loo daboolo diiwaanka xerega. Waa in aad la xariirtid wakaaladda soo xeridda iyo/ama BCA (Minn. Stat. § 299C.11, subd. 1(b)).

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If you were convicted in any other situation, your case does not meet the criteria under Minn. Stat. ch. 609A. Expungement of a conviction not meeting the 609A criteria is possible, but rare and can only be granted for the court's records. Records of your arrest and prosecution held by the police, sheriff's office, prosecutors and the BCA would not be affected by such an expungement order. Certain crimes can be expunged only if you can convince the court that you have made changes in your life that demonstrate you are very unlikely to commit another crime, and that the benefit to you from an expungement outweighs the burden of sealing the records.

Haddii laguugu xakumo arrin la xariirta xaalad kale, kiiskaada lama kulmo habka sida hoos timaada Minn. Stat. ch. 609A. Waa suurtoagal daboolidda xukunka aan la kulmin habka 609A, hase ahaatee waa yar tahay, waxaana la siin karaa oo keliya diiwaanada maxkamadda.

Ammarka daboolidda noocaas ma saamayn doono diiwaanka boliiska, xafiiska sheriffka, xeer ilaaliyeyaasha iyo BCA kaa hayaan marka lagu soo xero iyo laguugu oogo dambi. Waa la dabooli karaa dambiyada qaar haddii aad qancin kartid maxkamadda oo keliya in aad isbaddal ku samaysay noloshaada lana muujiya in aysan aad u badnayn in aad gashid dambi kale, iyo in manaafacaadka aad ka heshid daboolidda ka badan tahay culeyska daboolidda diiwaanada.

To request expungement of a conviction not meeting the 609A criteria, check the last box of item #9 of the Petition which states "I was convicted of an offense that does not qualify for expungement under Minn. Stat. § 609A.02, subd. 3, but I have rehabilitated myself. The benefit to me outweighs the disadvantage to the public and the burden on the court." An order expunging a conviction under these circumstances may provide only for expungement of the record held by state courts and may not expunge records held by state or local law enforcement and prosecution agencies.

Si loo codsado daboolidda xukunka aan la kulmin habka 609A, calaamee sanduuqa ugu dambeeyo qodobka #9 Codsiga sheega "Aniga waxaa leygu xakumay gaf oo aan xaq ii siinin daboolidd sida hoos timaada Minn. Stat. § 609A.02, subd. 3, hase ahaatee dib ayaan u hagaajiyay nafteyda. Manaafacaadka aan ka helo waa ka badan tahay dhibaataada ka soo gaarta dadweynaha iyo culeyska kora maxkamadda." Ammarka dabooli xukunka sida hoos timaada xaaladahaan wuxuu bixin karaa oo keliya daboolidda diiwaanka ay hayaan maxkamadaha gobolka, waxaana dhici karto in aysan daboolin diiwaanka ay hayaan hirgelinta sharciga gobolka iyo deegaanka iyo wakaaladaha xeer ilaalinta.

Helpful materials may be found at your public county law library. For a directory, see <http://mn.gov/law-library/research-links/county-law-libraries.jsp> . For more information, contact your court administrator or call the Minnesota State Law Library at 651-297-7651.

Waxyaabaha waxtarka leh waxaa laga heli karaa maktabka sharciga dadweynaha ee dagmadaada. Si aad u heshid liiska, fiiri <http://mn.gov/law-library/research-links/county-law-libraries.jsp> . Si aad u heshid macluumaad dheeraad ah, la xariir maamulaha maxkamadda ama wac Maktabka Sharciga Gobolka Minnesota, telefoonka 651-297-7651.

PROCEDURES FOR EXPUNGEMENTS

HABABKA LOO DABOOLU DIIWAANKA

A. COMPLETELY FILL OUT A SEPARATE PETITION AND ORDER FOR EACH CASE YOU WANT EXPUNGED:

SI DHAMAYSTIRAN U BUUXI CODSI GAAR AH IYO AMMARKA KIIS KASTA OO AAD DOONEYSID IN LA DABOOLU:

1. NOTICE OF HEARING AND PETITION FOR EXPUNGEMENT
OGEYSIISKA DHAGEYSIGA IYO CODSIGA DABOOLIDDA

You must fill out this document completely and sign your name. IT IS MANDATORY that you list all prior and pending criminal charges in this or any other state on this petition as well as any stays of adjudication, continuances for dismissal, or pretrial diversions in any jurisdiction. If you are unsure about your court records, all Minnesota counties have public access terminals where you may look up your case information. The Minnesota Bureau of Criminal Apprehension (BCA) will provide a printed record for a fee. You may contact the BCA at 651-793-2400 for more information.

Waa in aad si dhamaystiran u buuxisid warqadaan kuna saxiixdid magacaada. WAAA WAAJIB in aad dhamaan eedeynta dambiyada la soo dhaafay iyo kuwa weli ka socda gobolkaan ama gobol kasta oo kale ku qortid codsigaan iyo in aad ku qortid xukunka gadaal loo dhigay, sii wadidda si loo fasaxo, ama ku-leexinta ka hoorsyo dacwadda ka jirta nawaaxi kasta. Haddii aadan ogsooneyn diiwaankaada maxkamadda, dhamaan dagmooyinka Minnesota waxay leeyahiin meelaha dadweynaha kala xariiro oo aad ka fiirsan kartid macluumaadka kiiskaada. Xafiiska Qabashada Dambiyada Minnesota (Minnesota Bureau of Criminal Apprehension) (BCA) wuxuu bixin doonaa diiwaan qoran marka la bixiyo khidmad. Waxaad BCA kala xariiri kartaa 651-793-2400 si aad u heshid macluumaad badan.

Obtain a hearing date from the court administrator's office to be inserted in the notice. This date must be more than 60 days from the date notice is mailed plus 3 days for mailing.

Waxaad taariikhda dhageysiga ka qaadataa xafiiska maamulaha si loo geliyo ogeysiiska. Taariikhdaa waa in ay ka badan tahay 60 maalin laga bilaabo taariikhda boostada lagu diro ogeysiiska iyo 3 maalin oo diris ah.

2. PROPOSED ORDER TO EXPUNGE CRIMINAL RECORDS
AMMARKA DABOOLIDDA DIIWAANKA DAMBIGA

You must complete a separate order for each case that you want expunged. There are three types of orders (court form EXP105, court form EXP106, or court form EXP107). Use the one appropriate to your situation, as indicated on the petition (court form EXP102).

Waa in aad dhamaystirtid ammar gaar ah xagga kiis kasta oo aad rabtid in lagaa saaro. Waxaa jira saddax nooc oo ammar ah (foomka maxkamadda EXP105, foomka maxkamadda EXP106, ama foomka maxkamadda EXP107). Isticmaal midka ku habboon xaaladaada, sida lagu tilmaamay codsiga (foomka maxkamadda EXP102).

3. REQUEST FOR WAIVER OF FILING FEE—IN FORMA PAUPERIS (IFP)
CODSIGA KA-DHAAFIDDA KHIDMADDA GUDBINTA - IN FORMA PAUPERIS (IFP)

If you are not requesting expungement of an action or proceeding that was resolved in your favor, and you will be seeking waiver of the filing fee, additional papers need to be completed. See section D to see if you qualify for fee waiver. You will need to ask for a waiver form (IFP) specifically. Fee waiver forms are available at www.mncourts.gov/forms. You will have to provide financial

information to have the court determine whether you qualify to have the fee waived. The fee or the order waiving the fee must be submitted when the petition is filed.

Haddii aadan codsanin daboolidda talaabada ama dacwad adiga lagu siiyay garta, aadna dooneysid in lagaa dhaafo khidmadda diiwaan geelinta, waxaa loo baahan yahay in la buuxiyo warqado dheeraad ah. Fiiri qeybta D si aad u aragtid haddii aad xaq u leedahay ka-dhaafidda khidmadda. Waxaad u baahan tahay in aad si gaar ah u weydiisatid foomka ka-dhaafidda (IFP). Foomamka ka-dhaafidda waxaa laga helaa www.mncourts.gov/forms. Waxaa lagaaga baahan yahay in aad bixisid macluumaadka ku saabsan maaliyadda si maxkamadda go'aan uga gaarto haddii aad xaq u leedahay in lagaa dhaafo khidmadda. Khidmadda ama ammarka ka-dhaafidda khidmadda waa in la gudbiyo marka codsiga la soo gudbiyo.

B. MAKE COPIES OF THE COMPLETED FORMS YOU WILL NEED FOR SERVICE ON EACH AGENCY AND THEIR ATTORNEYS.

KOABI KA SAMEE FOOMAMKA LA DHAMAYSTIRAY OO AAD U BAAHAN DOONTID IN AAD GAARSIISID WAKAALAD KASTA IYO QAREENADOODA.

Minn. Stat. §609A.03, subd. 3 requires that a Notice of Hearing and Petition and unsigned proposed expungement order on ALL state and local agencies and their attorneys that might have a record of the offense you want to expunge. Most people need to serve **at least 6 agencies**; for example, the Minnesota Bureau of Criminal Apprehension, the Attorney General's Office, the local police department, the prosecuting attorney, the sheriff's department, county attorney, and county department of corrections (probation).

Minn. Stat. §609A.03, subd. 3, wuxuu rabaa in Ogeysiiska Dhageysiga (Notice of Hearing) iyo Codsiga iyo ammarka daboolida la soo jeediyay balse aan la saxiixin la gaarsiiyo wakaaladaha deegaanka iyo qareenada laga yaabo in ay diiwaan ka hayaan gafka aad dooneysid in la daboolo. Inta badan dadka waxay u baahan yahiin in ay gaarsiiyaan ugu yaraan 6 wakaalad; tusaale ahaan, Xafiiska Qabashada Dambiyada Minnesota (Minnesota Bureau of Criminal Apprehension), Xafiiska Xeer Ilaaliyaha Guud (Attorney General's Office), waaxda boliiska deegaanka, xeer ilaaliyaha kiiska, waaxda sheriffkaa, xeer ilaaliyaha dagmada, iyo waaxda dhaqan celinta dagmada (tijaabinta).

Items to copy and serve:

Qodobada loo baahan yahay in laga sameeyo koobi lana gudbiyo:

1. Notice of Hearing and Petition(with the scheduled hearing date completed)
Ogeysiiska Dhageysiga iyo Codsiga (Notice of Hearing and Petition) (iyo taariikhda dhageysiga la ballamiyay oo la dhamaystiray)
2. The unsigned proposed Order you are seeking to have the judge issue.
Ammarka la soo jeediyay balse aan la saxiixin ee aad raadsaneysid in garsooraha uu soo saaro.

IMPORTANT! Get legal advice about serving **OTHER** agencies such as the MN Dept. of Human Services (regulates employment in health care, education, day care, foster care, etc.) or licensing agencies (for teaching, nursing, real estate, etc.) Depending on your situation, serving those agencies may or may not be in your best interest.

MUHIIM: Hel kaalmada sharciga xagga gaarsiinta wakaaladaha **KALE** sida Waaxda Adeegyada Aadanaha MN (MN Department of Human Services) (sharci dajinta shaqada xagga daryeelka caafimaadka, waxbarashada, xanaanada maalinta, xanaanada korinta, iwm.) ama wakaaladaha shatti bixinta (xagga tababarka, kalkaalinta, hantida ma guuraanka, iwm.) Sida ku xeran xaaladaada, waxaa dhici karto in gaarsiinta wakaaladahaas ay ku jirto ama in aysan ku jirin masraxadaada ugu wanaagsan.

C. PROCESS FOR SERVICE

HABKA GAARSIINTA

You are responsible to see that service is done properly. Court staff cannot serve the documents for you. Service needs to be done by a disinterested third party (someone not related to the case) who is 18 years or older. That person must mail a copy of all required documents and complete the Proof of Service. Service must be complete at least 63 days before the scheduled hearing date.

Waxaad mas'uul ka tahay in aad habsatid in gaarsiinta loo fulliyay si habboon. Shaqaalaha maxkamadda kuuma gudbin karaan warqadaha. Waxaa loo baahan yahay in gaarsiinta uu sameeyo dhinac saddaxaad oo aan dan ka lahayn (qof aan laa xariirin kiiska) oo jira 18 sanno ama ka badan. Qofkaas waa in uu boostada ku diro koobiga dhamaan warqadaha loo baahan yahay iyo in uu buuxiyo Caddeynta Gaarsiinta (Proof of Service). Gudbinta waa in la dhameeyo ugu yaraan 63 maalin ka hor inta aan la gaarin taariikhda dhageysiga la ballamiyay.

1. Fill out your part of the *Proof of Service* form.

Buuxi qeybtaada foomka Caddeynta Gaarsiinta.

Get a **separate** *Proof of Service* form for **each court case** you want to expunge.

Example: If you want to expunge 3 different court cases, you must prepare a separate *Proof of Service* form for each case, for a total of 3 service forms.

Hel foomka Caddeynta Gaarsiinta (Proof of Service) oo gaar ah xagga kiiska kasta maxkamadda aad dooneysid in aad dabooshid. Tusaale ahaan: haddii aad dooneysid in aad dabooshid 3 kiis maxkamadeed, waa in aad kiis kasta si gaar ah ugu diyaarisid foomka Caddeynta Gaarsiinta (Proof of Service), ilaa 3 foomamka gaarsiinta.

YOU must fill in the blanks for the **government agency addresses** on the *Proof of Service* form. Write the County name and the City name where the offense happened (or where you were arrested), and write the address for each local government agency related to that case. If you decide to serve the MN Dept. of Human Services and/or Dept. of Health, check the box next to their address listed on the form. If you are serving other agencies, write their names and addresses in the extra spaces on the form and check those boxes.

ADIGA waa in aad buuxisid meelaha ka banaan **cinwaanada wakaaladda dawladda ee foomka Caddeynta Gaarsiinta**. Qor magaca Dagmada iyo magaca Magaalada meesha gafka uu ka dhacay (ama meesha laguugu xeray), iyo qor cinwaanka wakaalad kasta oo ka tirsan dawladda deegaanka ee la xariira kiiskaas. Haddii aad go'aan ku gaartid in aad u gudbisid Waaxda Adeegyada Aadanaha MN (MN Dept. of Human Services) iyo/ama Waaxda Caafimaadka (Dept. of Health), calaamee sanduuqa ku xiga cinwaankooda ku qoran foomka. Haddii aad u adeegtid wakaalado kale, waxaad

magacyadooda iyo cinwaanadooda ku qortaa boosaska dheeraadka ah foomka kaddibna hubso sanduuqyadaas.

Using the **same court information** from your criminal case, **YOU** must fill in the blanks at the top of the *Proof of Service* form with the County, Judicial District and Court File Number. **STOP!** The person who serves the documents must fill out the other blanks on the form. See #3 below called **“How your ‘server’ must complete the *Proof of Service* form.”**

Marka aad isticmaashid isla macluumaadka maxkamadda kiiskaada dambiga, ADIGA waa in meelaha banaan dhanka kore foomka Cadeynta Gaarsiinta ku buuxisid Dagmada, Maxkamadda Dagmada iyo Nambarka Faylka Maxkamadda. JOOGSO! Qofka gudbiya warqadaha waa in uu buuxiyo meelaha ka banaan foomka. Fiiri #3 hoos ee lagu magacaabay "Sida laga rabo 'gudbiyahaada' in uu u dhamaystiro foomka Caddeynta Gudbinta (Proof of Service)."

2. Get copies of your expungement papers ready to be served.

Diyaarso koobiyada warqadahaada daboolidda si aad u gudbisid.

Your expungement papers can be **served by mail**, but **YOU cannot** be the one who puts the envelopes in a mailbox. Ask a friend or relative who is **18 years old or older** to be your “server.” Copies of the *Proof of Service* do **not** have to be mailed to the government agencies.

Warqadahaada daboolidda dambiga waxaa lagu diri karaa boostada, hase ahaatee ADIGA ma noqon kartid qofka bakhshadaha geliya sanduuqa boostada. Weydii saaxiib ama qaraabo jira 18 sanno ama ka weyn in uu ahaado "gudbiyehaaada." Qasab ma aha in koobiyada Caddiynta Gudbinta (Proof of Service) boostada loogu diro wakaaladaha dawladda.

STEP 1: Make copies of your completed *Petition* and proposed *Order*.

TALAABADA 1AAD: Koobi ka samayso Codsigaada dhamaystiran iyo Ammarka la soo jeediyay.

Make one copy of your completed *Petition* (and any attachments) and proposed *Order* for **each government agency**, and make one copy for yourself. Copies can be double-sided to save on cost. **Example:** If you are serving 8 agencies checked in your *Proof of Service*, you need to make 9 copies of your papers (1 for each agency + 1 for you).

Hal koobi ka samee Codsigaada oo dhamaystiran (iyo lifaaqyada) iyo Ammarka la soo jeediyay xagga wakaalad kasta oo ka tirsan dawladda, iyo waxaad hal koobi u samaysaa naftaada. Koobiyada waxay ahaan karaan kuwo labada dhinac ku qoran si loo dhaqaaaleyso kharashka. Tusaale ahaan: Haddii aad u adeegtid 8 wakaalad oo lagu calaameyay Caddeynta Gaarsiinta (Proof of Service), waxaad u baahan tahay in aad sameysid 9 koobi warqadahaada (1 wakaalad kasta + 1 laguugu talagalay adiga).

Do not count your ORIGINALS as a “copy” in the total. **Keep the ORIGINAL *Petition* and proposed *Order*** to file with the court as soon as possible after service of your papers is complete.

Ha tirsanin ASALKA sida "koobiga" ku jiro iskudarka. Haayso codsiga ASALKA iyo Ammarka la soo jeediyay si aad ugu soo gudbisid maxkamadda sida ugu dhakhsiyaha badan kaddib marka gudbinta warqadaha la dhamaystiro.

STEP 2: Address an envelope for each government agency checked on your *Proof of Service* form.

TALAABADA 2AAD: *Ku qor cinwaanka bakhshadda ku socota wakaalad kasta oo ka tirsan dawladda ee lagu calaameyay foomka Caddeynta Gudbinta (Proof of Service).*

If you want to expunge only one case, a set of copies should fit into a regular business-size envelope. You need larger envelopes to hold expungement papers for two or more cases. Most people need at least **6 envelopes**, or more if they serve a City Attorney and regulatory/licensing agencies. You should write **your return address** on the envelopes.

*Haddii aad dooneysid in aad dabooshid hal kiis oo keliya, dhowr koobi ayaa geli kara bakhshadda ganacsiga. Waxaad u baahan tahay bakhshado waaweyn oo aad gashatid warqadaha daboolidda dambiga ee labo kiis ama ka badan. Inta badan dadka waxay u baahan yahiin **6 bakhshad**, ama ka badan haddii ay u adeegaan Xeer Ilaaliyaha Magaalada iyo wakaaladaha sharci dajinta/shatti bixinta. Waa in aad bakhshadda ku qortid **cinwaanka laquuqu soo diro**.*

NOTE: If you want to expunge more than one case in the **same County**, you can put copies for each case into the same envelope addressed to a government office. **Example:** If you are asking to expunge 5 cases, you can put a set of copies for each case into one large envelope addressed to the BCA; then do the same for the other government agencies. **STOP!** If any of the 5 offenses happened in **different cities** within the County, be sure to serve the correct copy of expungement papers on the correct **local** government agencies (police & prosecutor) where each offense happened.

XASUUSIN: Haddii aad dooneysid in aad dabooshid in ka badan hal kiis **isla Dagmada**, waxaad koobiyada kiis kasta gelisaa isla bakhshadda ku socota xafiiska dawladda. **Tusaale ahaan:** Haddii aad codsanaysid in aad dabooshid 5 kiis, waxaad dhowr koobi oo laga sameyay kiiska gelin kartaa hal bakhshad weyn oo ku socota BCA; kaddibna isla sidaas u samee wakaaladaha kale dawladda. **JOOGSO!** Haddii uu jiro mid ka mid ah 5ta gaf ee ka dhacay **magaalooyin kala duwan** gudaha Dagmada, hubso in aad koobiga saxsan warqadaha daboolidda siisid wakaaladaha dawladda **deegaanka** (boliiska iyo xeer ilaaliyaha) meesha gaf kasta uu ka dhacay.

STEP 3: Add enough postage to each envelope to send by 1st class U.S. Mail.

TALAABADA 3AAD: *Waxaad bakhshad kasta ku dartaa shabad ku filan kuna dir darajada 1aad, Boostada Mareykanka (1st class U. S. Mail).*

The amount of postage you need depends on the number of pages in each envelope. It's a good idea to weigh your envelopes at a Post Office, and buy the correct postage. You **do not** need to use "certified" or "return receipt" mail. **STOP! Do not** let a Post Office employee put the envelopes in the mailbox!

*Qiyaasta shabadda aad u baahan tahay waxay ku xeran tahay tirada bogagga ku jira bakhshad kasta. Waa fikrad fiican in bakhshadahaada lagu miisaamo Xafiiska Boostada, lagana iibsado shabadda saxsan. **Uma** baahnid in aad adeegsatid dirista "shahaadeynta" ama "resiidka soo celinta." **JOOGSO! Ha u** ogolaanin shaqaale ka tirsan Xafiiska Boostada in uu bakhshadda geliyo sanduuqa boostada.*

STEP 4: Ask a friend or family member to be your "server."

TALAABADA 4AAD: *Weydii saaxiib ama xubin ka tirsan qoyska in uu ahaado "geeyahaada."*

YOU cannot be the one who puts the envelopes in a mailbox. Ask someone **over age 18** to be your server. Show your expungement documents to your server and then put them in stamped envelopes. Give the envelopes to your server along with the *Proof of Service* form. The server puts your envelopes in a U.S. mailbox and must follow the instructions below to complete the *Proof of Service* form.

ADIGA ma ahaan kartid qofka bakhshadaha soo geliya sanduuqa boostada. Weydii qof ka weyn 18 sanno in uu ahaado qofka kuu adeega. Waxaad gaarsiinta tustaa warqadahaada suulinta kaddibna waxaad gelisaa bakhshadaha shabbadeysan. Waxaad bakhshadaha u dhiibtaa gudbiyahaada una raaci foomka Caddeynta Gudbinta (*Proof of Service*). Gaarsiiyaha wuxuu bakhshadahada geliyaa sanduuqa boosta Mareykanka (U.S. mailbox) iyo waa in uu raaco tilmaamaha hoose si uu dhamaystiro foomka Caddeynta Gaarsiinta (*Proof of Service*).

STEP 5: After mailing, your server must complete the *Proof of Service* form.

TALAABADA 5AAD: *Kaddib marka aad dirtid, gudbiyahaada waa in uu buuxiyo foomka Caddeynta Gudbinta (*Proof of Service*).*

When the form is completed, your server gives it back to you to file with the court. Marka foomka la dhamaystiro, gudbiyahaada wuu kuu soo celin doonaa si aad ugu gudbisid maxkamadda.

3. How your “server” must complete the *Proof of Service* form.

Sida "gudbiyahaada" loo baahan yahay in uu buuxiyo foomka Caddeynta Adeegga.

AFTER your server places your envelopes in a U.S. mailbox, **he or she** must fill out the blanks on the *Proof of Service* form as follows:

KADDIB marka gudbiyahaada uu bakhshadahaada geliyo sanduuqa boosta Mareykanka, **isaga ama iyada** waa in aad meelaha ka banaan foomka Caddeynta Gudbinta (*Proof of Service*) u buuxisaan sida soo socota:

- write in the name of the **County** where the *Proof of Service* form is **signed** (can be different from where case is filed);
*waxaad ku qortaa magaca **Dagmada** meesha lagu **saxiixay** foomka Caddeynta Gudbinta (*Proof of Service*) (wuxuu ka duwanaan karaa meesha kiiska laga gudbiyay);*
- write **their name** in the blank for the person who mailed the envelopes;
waxaad magacooda ku qortaa meesha banaan ee loogu talagalay qofka boostada ku diray bakhshadaha;
- write the **date** they mailed the envelopes. This date must be **at least 63 days BEFORE** the hearing date;
*qor **taariikhda** ay soo direen bakhshadaha. Taariikhdaan waa in ay ahaato **ugu yaraan 63 maalin KA HOR** inta aan la gaarin taariikhda dhageysiga;*
- write in the name of the **City** where they mailed the envelopes; and
ku qor magaca Magaalada meesha ay boostada uga soo direen bakhshadaha; iyo
- **sign** the *Proof of Service*.
***saxiix** Cadeeynta Gaarsiinta*

After completing these steps, your server gives the signed *Proof of Service* form **back to YOU.**

*Kaddib marka aad dhamaysid talaabadahaan, gaarsiiyahaada wuxuu **dib kuugu soo celin doonaa ADIGA** foomka Caddeynta Gaarsiinta.*

D. FILING THE PAPERWORK WITH DISTRICT COURT WARQADAH Loo GUDBIYO MAXKAMADDA DAGMADA

After copies of the documents have been served on all required agencies and their attorneys, the Notice of Hearing and Petition for Expungement, the proposed order along with written proof (Proof of Service) that all agencies have been served must be filed with the court administrator's office. File your documents as soon as you have completed the service process.

Kaddib marka koobiyada warqadaha la gaarsiiyo dhamaan wakaaladaha loo baahan yahay iyo qareenadooda, Ogeysiiska Dhageysiga iyo Codsiga Daboolidda, ammarka la soo jeediyay iyo caddeynta qoran (Caddeynta Gaarsiinta) in dhamaan wakaaladaha la gaarsiiyay waa in loo gudbiyo xafiiska maamulaha maxkamadda. Gudbi warqadahaada isla marka aad dhameysid hawsha gudbinta.

- A filing fee is not required for cases that were “resolved in your favor.” This means no filing fee is required if you were not convicted, were not found guilty, and did not plead guilty in the case, or you were exonerated under Minn. Stat. § 590.11. If the case was “resolved in your favor,” inform court personnel that the filing fee is waived by statute.

Loom baahna khidmadda gudbinta xagga kiisaska "la xalliyay dhankaada." Tan macnaheeda waxay tahay in aan loo baahneyn khidmadda diiwaan gelinta haddii aan lagu xakumin, aan laguugu helin dambi, iyo aadan qiranin dambiga kiiska, ama lagaa dhaafay sida hoos timaado Minn. Stat. § 590.11. Haddii laga siiyo garta kiiska, ogeysii shaqaalaha maxkamadda in sharciga ka dhaafay khidmadda gudbinta.

- A filing fee is required for cases in which you were convicted or where you were found guilty by the court or entered a guilty plea, even if you were not convicted or the conviction was later vacated.

Waxaa loo baahan yahay khidmadda diiwaan gelinta xagga kiisaska laguugu xakumay ama meesha maxkamadda kugu heshay in aad tahay dambiile ama aad ku gashay waanwaanta qirashada, xattaa haddii aan lagu xakumin ama xukunka laga saaray goor dambe.

Check with the court administrator in the county where you are filing for the correct filing fee amount. If you do not qualify for fee waiver under statute, you may ask the court to waive the filing fee by completing a form called “Affidavit for Proceeding In Forma Pauperis” and following the instructions given to you by court personnel.

Ka hubso maamulaha maxkamadda dagmada meesha aad ka gudbineysid lacagta khidmadda gudbinta saxsan. Haddii aadan xaq u yeelanin ka-dhaafidda khidmada sida hoos timaado sharciga, waxaad maxkamadda weydiisan kartaa in kaa dhaafto khidmadda soo gudbinta adiga oo dhamaystira foomka lagu magacaabo "Warqadda Dhaarta Ku Dhaqaaqidda In Forma Pauperis" iyo raacidda tilmaamaha ay shaqaalaha maxkamadda ku siiyeen adiga.



Write the **court date and time** on your calendar! The court may not send you a reminder. If you don't go to your hearing, you might have to start over from the beginning.

Waxaad **taariikhda iyo waqtiga maxkamadda** ku qortaa jadwalka! Waxaa dhici karto in maxkamadda aysan kuu soo dirin xasuusin. Haddii aadan tagin dhageysigaada, waxaa laga yaabaa in aad ka soo bilowdid bilowga.

E. AGENCY OPPORTUNITY TO OBJECT

FURSADDA WAKAALADA KU DIIDO

Each agency that you serve with the petition and proposed order has an opportunity to provide information to the court for its consideration of your request. If an agency chooses to provide information to the court, it must send you a copy of what it submits and will use the address you list in the petition.

Wakaalad kasta oo aad u gudbisid codsiga iyo ammarka la soo jeediyay waxay fursad u leedahay in ay macluumaad siiso maxkamadda si ay u tixgeliso codsigaada. Haddii wakaaladda doorato in ay macluumaad siiso maxkamadda, waa in ay kuu soo dirto koobiga waxa ay dirto iyo waxay isticmaali doontaa cinwaanka aad ku qortay codsiga.

F. THE COURT HEARING

DHAGEYSIGA MAXKAMADDA

You must appear at the hearing. Bring your copies of the documents along with you to court for your own reference. The original documents should already be in the court file.

Waa in aad timaadid dhagysiga. Keen koobiyadaada warqadaha una soo qaado maxkamadda si aad u tixraacdid. Warqadaha asalka waa in ay horay ugu jiraan faylka maxkamadda.

At the hearing, the Judge will review your petition and any attachments you have submitted. The Judge will also consider any information presented by the prosecutor, any of the various government agencies and any victim. A victim has the right to submit an oral or written statement to the court. You may be required to testify and be cross examined by attorneys for any agency or office that opposes your request.

Dhageysiga, Garsooraha wuxuu fiirin doonaa codsigaada iyo warqadaha ku lifaaqan ee aad soo gudbisay. Garsooraha wuxuu kaloo tixgelin doonaa macluumaad kasta ay soo bandhigaan xeer ilaaliyaha, mid kasta oo ka mid ah wakaaladaha dawladda ee kala duwan iyo dhibbane kasta. Dhibanaha wuxuu xaq u leeyahay in uu maxkamadda u gudbiyo oraahda afka ama mid qoran. Waxaa dhici karto in lagaa dalbado in aad marqaati furtid kaddibna qareenada ku weydiyaan su'aalo dadban xagga wakaalad kasta ama xafiis is hortaaga codsigaada.

The Judge may not make a decision at the time of the hearing, and may or may not grant the expungement. The Judge may sign the proposed order that you have provided (granting or denying your request), or may prepare his or her own order. The Judge may deny expungement if your request does not meet the necessary qualifications even if no one objects.

Waxaa dhici karto in garsooraha uusaan gaarin go'aan waqtiga dhageysiga, iyo waxaa dhici karto in uu bixiyo ama in uusan bixinin daboolidda. Waxaa dhici karto in Garsooraha saxiixo ammarka la soo jeediyay ee aad bixisay (siinta ama diidmada codsigaada), ama waxaa dhici karto in uu diyaariyo ammarkiisa ama in ay diyaarisoo

ammarkeeda. Garsooraha wuxuu diidi karaa daboolidda haddii codsigaada uusan la kulmin aqoonta loo baahan yahay xattaa haddii qofna uusan ka hortagin.

When the order is signed, the court administrator's office will send a copy of the order to all the agencies named in the order to receive notice. If your request was granted, these agencies have 60 days to appeal the order. Your record remains public during this period, while any appeal is pending, and while any financial obligation owed on the case remains unpaid. Any party whose records will be affected by the order may file an appeal to the Minnesota Court of Appeals. If an appeal is filed, you will be responsible for representing yourself or retaining an attorney to represent you. If no appeal is filed, and you do not owe any financial obligation, the record will be sealed 60 days after the filing of the order. It is a good idea to obtain a certified copy of this order for your own records. A certified copy fee will be charged unless you have an in forma pauperis (IFP) order.

Marka la saxiixo ammarka, xafiiska maamulaha maxkamadda wuxuu koobiga ammarka u diri doonaa dhamaan wakaaladaha lagu magacaabay ammarka in ay helaan ogeysiiska. Haddii lagu ogolaado codsigaada, wakaaladahaan waxay haystaan 60 maalin ay racfaan ka qaataan ammarka. Muddadaan, diiwaankaada wuxuu ahaan doonaa mid u furan dadweynaha, inta racfaanka la sugaayo, iyo inta aan la bixinin waajibka maaliyadda ee laga qabo kiiska. Dhinac kasta uu ammarka saameeyo diiwaankooda waxay racfaan u soo gudbin kartaa Maxkamadda Racfaanada Minnesota (Minnesota Court of Appeals). Haddii la soo gudbiyo racfaan, adiga waxaad mas'uul ka taahay in aad mattashid naftaada ama aad qoratid qareen adiga ku mattala. Haddii aan la soo gudbinin racfaan, lagaana rabin in aad bixisid waajibka maaliyadda, diiwaanka waxaa la dabooli doonaa 60 maalin kaddib marka la soo gudbiyo ammarka. Waa fikrad wanaagsan in la helo koobiga shahaadada ammarkaan si aad ugu haysatid diiwaankaada. Koobiga shahaadada waxaa lagu dallici doonaa khidmad haddii aadan haysanin ammarka In Forma Pauperis (IFP).

**REMINDER: CONTACT AN ATTORNEY IF YOU NEED MORE ASSISTANCE.
XASUUSIN: LA XARIIR QAREEN HADDII AAD U BAAHAN TAHAY KAALMO
DHEERAAD AH.**